

## 25NNCV04565 25NNCV04565

County: los-angeles

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Department: P

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[TENTATIVE] ORDER GRANTING PLAINTIFF'S

MOTION TO COMPEL DEPOSITION OF FCA'S PMQ and DENYING MONETARY SANCTIONS

### I. INTRODUCTION

Plaintiff Samuel Bruchey ("Plaintiff") filed this Song-Beverly action against Defendant FCA US LLC ("Defendant" or "FCA") on June 30, 2025. FCA filed its answer on August 14, 2025.

On July 15, 2026, Plaintiff filed the instant motion to compel FCA to produce its Person Most Qualified ("PMQ") for the initial deposition under Code of Civil Procedure section 871.26 and for monetary sanctions. FCA filed an opposition on August 10, 2026, and Plaintiff filed a reply on August 12, 2026.

### II. LEGAL STANDARD

Code of Civil Procedure section

871.26, subdivision (c), provides that within 120 days after the filing of an answer or other responsive pleading, the parties have the right to conduct initial depositions, each not to exceed two hours, of the plaintiff and defendant. Where the defendant is not a natural person, the deposition is of the person most qualified to testify on the defendant's behalf and is limited to the topics identified in subdivision (i). (Code Civ. Proc., § 871.26, subd. (c).)

Unless the noncomplying party shows

good cause, the court shall impose a \$2,500 sanction against defense counsel for failure to comply with the deposition requirements of subdivision (c),

payable within 15 business days. (Code Civ. Proc., § 871.26, subd. (j)(2).).

### III. ANALYSIS

Plaintiff moves to compel Defendant to produce its PMQ for the initial deposition by Code of Civil Procedure section 871.26 and requests that the deposition occur on or before August 31, 2026. Plaintiff also seeks the \$2,500 monetary sanction provided by section 871.26, subdivision (j)(2).

The record reflects that FCA filed its answer on August 14, 2025. The parties thereafter attempted on several occasions to schedule FCA's PMQ deposition. Defendant initially offered December 12, 2025, and Plaintiff agreed to that date, but Plaintiff failed to serve an amended deposition notice. Defendant subsequently offered February 19, 2026, but around that time the handling attorney at Plaintiff's firm left and the matter was transferred to another attorney. Plaintiff did not again request deposition dates until April 29, 2026. (Steward Decl., ¶¶ 11-17.)

On May 4, 2026, FCA offered July 20, 2026, for the deposition, and Plaintiff agreed. On June 1, 2026, Plaintiff served an amended deposition notice setting the PMQ deposition for July 20, 2026. (Steward Decl., ¶¶ 18-20.) FCA objected to the amended notice on July 13, 2026, and the deposition did not proceed.

In opposition, FCA does not dispute that its PMQ deposition has not occurred. Rather, FCA principally argues that Plaintiff contributed to the delay, failed to adequately meet and confer, and noticed matters for examination beyond those authorized by section 871.26. (Opposition, p. 4.) FCA further notes that its present counsel substituted into the action on July 20, 2026, and has since offered to provide deposition dates and attempted to meet and confer with Plaintiff. (Id. at p. 2.)

The Court finds an order compelling the deposition warranted. Although Plaintiff bears some responsibility for the earlier scheduling delays, FCA's initial PMQ deposition under section 871.26 has not occurred. Thus, the Court GRANTS Plaintiff's motion to compel the PMQ deposition.

#### Sanctions

Plaintiff also seeks a \$2,500 monetary sanction against FCA's counsel

pursuant to section 871.26, subdivision (j)(2). Although FCA's PMQ deposition did not occur within the statutory period, the record reflects that Plaintiff contributed to the delay. Under these circumstances, the Court finds good cause not to impose the \$2,500 sanction. Plaintiff's request for monetary sanctions is DENIED.

#### IV. CONCLUSION AND ORDER

The Court GRANTS Plaintiff's motion to compel the PMQ deposition. The parties are ordered to meet and confer and select a mutually agreeable deposition date on or before August 31, 2026. The Court DENIES Plaintiff's request for monetary sanctions.

Plaintiff is to give notice.

Dated: August 19, 2026

JARED D. MOSES  
JUDGE OF THE SUPERIOR COURT